

Court No. - 39

Case :- WRIT - C No. - 2906 of 2019

Petitioner :- Satveer Singh

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Awadhesh Kumar Malviya, Sunil Kumar Singh

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble B. Amit Sthalekar, J.

Hon'ble Mrs. Manju Rani Chauhan, J.

Heard Sri Awadhesh Kumar Malviya, learned counsel for the petitioner, Sri Pawan Kumar Mishra, counsel holding brief of Sri Pranjal Mehrotra, learned counsel for the respondent no.3 and the learned Standing Counsel for Respondents no. 1, 2 and 4.

The petitioner in the writ petition is seeking quashing of the recovery citation dated 20.12.2018 whereby a sum of Rs. 3,75,025/- towards electricity dues as well as notice no. 1790 (Annexure no.9 to the writ petition) whereby a sum of Rs. 3,70,025/- is sought to be recovered from the petitioner.

According to the petitioner, he had applied for electricity connection in the year 1991 and also deposited of Rs. 2,500/- towards the same but no electricity connection has been given till date and yet the electricity bill has been issued.

We find that it is a case of disputed bill against which the petitioner has a remedy under Clause 6.5 of the Electricity Supply Code, 2005 by approaching the Executive Engineer, Vidhyut Vitran Khand-I, Paschimanchal Vidhyut Vitran Nigam, Moradabad-respondent no.3.

No useful purpose would be served in keeping this writ petition pending.

This writ petition is disposed of with a direction that if the petitioner appears before the respondent no. 3-Executive Engineer, Vidhyut Vitran Khand-I, Paschimanchal Vidhyut Vitran Nigam, Moradabad on 31.1.2019 at 11 a.m. personally with the certified copy of this order alongwith copy of his representation/objection, the respondent no. 3 shall provide an opportunity of hearing to the petitioner and decide the representation of the petitioner, in accordance with law, within a further period of fifteen days.

Subject to the petitioner complying with the direction given hereinabove, the recovery in pursuance of the impugned citation notices no. 1789 dated 20.12.2018 & 1790 shall remain in abeyance and shall be subject to any final order which may be passed by the respondent no.3.

It is made clear that the court has not adjudicated the claim of the petitioner on merit.

Order Date :- 25.1.2019

JK Yadav